SUPREME COURT OF INDIA

APPELLATE JURISDICTION · CONSTITUTION BENCH (5 JUDGES)

Writ Petition (Civil) No. 1099 of 2019 **CNR: SCIN010010992019**

Date: 11 December, 2023 *Citation: (2024) 6 SCC 1*

CORAM: Hon'ble D.Y. Chandrachud, C.J., Sanjay Kishan Kaul, Sanjiv Khanna, B.R. Gav

Petitioner: In Re Article 370 Petitions

- VERSUS -

Respondent: Union of India & State of Jammu and Kashmir

DOMAIN: CONSTITUTIONAL LAW & ASYMMETRIC FEDERALISM **STATUS: Good Law (5-Judge Constitution Bench Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

Article 370 was a feature of asymmetric federalism and not sovereignty. The power of the President under Article 370(3) to issue a notification declaring Article 370 inoperative did not cease to exist upon dissolution of the Constituent Assembly.

STATUTES APPLIED: Article 370, Article 367, Article 356, Article 3

DISPOSITION: CONSTITUTIONAL ORDERS CO 272 AND CO 273 UPHELD

EXECUTIVE RATIO SUMMARY:

Five-judge Constitution Bench unanimously upheld the abrogation of Article 370, holding that Article 370 was a temporary transitional provision and Jammu and Kashmir did not retain any internal sovereignty after accession to India.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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